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Venttly — Terms of Service

Terms governing access to and use of the Venttly platform

Version 1.0 | Effective [EFFECTIVE DATE] | Operated by CODAFRIQA LTD, Kigali, Rwanda

Service	Venttly
Operator	CODAFRIQA LTD, Kigali, Rwanda (Company Code / TIN 155397275)
Document	Terms of Service, Version 1.0
Effective date	[EFFECTIVE DATE]
Governing law	Laws of the Republic of Rwanda

These Terms of Service (the “Terms”) form a legally binding agreement between CODAFRIQA LTD, a company incorporated under the laws of the Republic of Rwanda (“CODAFRIQA”, “we”, “us” or “our”), and any person who accesses or uses the Venttly application, website or related services (“you” or “the User”).

By creating an account or otherwise using Venttly, you confirm that you have read, understood and agree to be bound by these Terms and by the Venttly Privacy Policy. If you do not agree, you must not use Venttly.

1. ABOUT VENTTLY

Venttly is a social communication platform operated by CODAFRIQA LTD. Depending on the version of the service available to you, Venttly may provide user profiles, social connections, posts and Vents, pseudonymous interaction, private and group communication, messaging, notifications, content sharing, community features, discovery, reporting and moderation tools, and account verification.

Features may be introduced, modified, suspended or withdrawn. Not every feature is available to every user, account, territory or device.

2. ACCEPTANCE OF THESE TERMS

2.1 Binding agreement

By selecting “Create account”, “Sign up”, “Continue”, “I agree” or a similar control, or by otherwise using Venttly, you confirm that you have read and understood these Terms, agree to be bound by them, agree to comply with applicable law, acknowledge the Privacy Policy, and accept that Venttly is a platform for user-generated content.

2.2 Electronic acceptance

Electronic acceptance constitutes acceptance of this agreement to the extent permitted by applicable law. We may retain a record of acceptance, including the date, time, account identifier and the version of the Terms presented.

2.3 Consent under data-protection law

Acceptance of these Terms is not a substitute for any consent required under data-protection law. Where we rely on consent as a lawful basis for processing personal data, that consent is requested separately and for a specified purpose, as required by Law N° 058/2021 of 13 October 2021 relating to the protection of personal data and privacy (the “DPP Law”).

3. ELIGIBILITY

3.1 Minimum age

Venttly is intended for users aged [MINIMUM AGE] years and above. Where we become aware that an account belongs to a person below the applicable age threshold, we may restrict or close the account and delete associated personal data, and we will apply the requirements of the DPP Law concerning the processing of children's personal data, including any requirement for parental or guardian authorisation.

3.2 Your representations

By using Venttly you represent that you meet the age requirement, that the information you provide is accurate, that you have authority to enter into these Terms, and that your use of Venttly does not breach any law or obligation applicable to you. If you use Venttly on behalf of an organisation, you represent that you have authority to bind that organisation.

4. ACCOUNTS

You may need an account to use certain features. You agree to provide accurate information and keep it current, to keep your login credentials confidential, to take reasonable steps to protect your account, to notify us if you suspect unauthorised access, and not to allow another person to use your account where that would compromise security or breach these Terms.

You are responsible for activity occurring through your account, except where applicable law provides otherwise or where the activity resulted directly from a failure by us to maintain required security safeguards. We may require additional verification where reasonably necessary for security, fraud prevention, account recovery, moderation or legal compliance.

5. IDENTITY AND PSEUDONYMITY

Venttly allows usernames, pseudonyms and other forms of identity presentation.

Pseudonymity is not absolute anonymity. Venttly does not promise that a user can never be identified.

We collect and retain information necessary for security, legal compliance, fraud prevention, investigation of abuse, account recovery and enforcement of these Terms. Where required by law, or where legally permitted and reasonably necessary, we may disclose relevant information to competent authorities, courts or regulators.

6. USER CONTENT

“User Content” means any material you submit, upload, post, transmit or otherwise make available through Venttly, including text, photographs, video, audio, profile information, messages, comments, posts, Vents, usernames, reactions, reports and feedback.

You remain responsible for your User Content and represent that you hold the rights and permissions necessary to submit it.

7. LICENCE TO OPERATE THE SERVICE

You retain ownership of your User Content. By submitting User Content, you grant CODAFRIQA a non-exclusive, worldwide, royalty-free, sublicensable and transferable licence, for as long as necessary to operate the service, to host, store, reproduce, process, format, transmit, display and distribute that content as reasonably necessary to operate Venttly, provide the features you request, deliver content to intended recipients, maintain backups, secure and moderate the service, investigate abuse, prevent fraud, improve technical performance and comply with law.

We do not acquire ownership of your User Content. Where content is deleted, this licence continues only to the extent reasonably necessary for backups, legal compliance, security, fraud prevention or dispute resolution, as described in the Privacy Policy.

8. PROHIBITED CONTENT

You must not use Vently to submit, distribute or facilitate content that:

- is unlawful, or threatens or facilitates violence;
- exploits or sexually abuses a minor, or constitutes child sexual exploitation material;
- constitutes a credible threat against another person;
- facilitates terrorism or serious criminal activity;
- impersonates another person for the purpose of fraud or harm;
- constitutes harassment, stalking or targeted abuse;
- unlawfully exposes another person's private information;
- facilitates fraud, scams or identity theft;
- infringes intellectual-property rights;
- distributes malware or malicious code, or attempts unauthorised access;
- manipulates platform systems or artificially inflates engagement;
- encourages or facilitates suicide, self-harm or serious physical harm;
- unlawfully distributes intimate or private material; or
- otherwise creates a significant risk of harm to users, to Vently or to third parties.

We may remove or restrict content that breaches these Terms, applicable law or our Community Guidelines.

9. SAFETY, DISTRESS AND CRISIS CONTENT

Vently is a place where people share difficult experiences. It is important that you understand what the service is and what it is not.

Vently is not a crisis service, a counselling service or a medical service, and it is not a substitute for professional help.

We do not monitor communications in real time and cannot be relied upon to detect that a person is in danger or to obtain help on their behalf. If you or someone else is at immediate risk of harm, contact local emergency services or a qualified professional.

Where content indicates that a person may be at risk, we may display safety information and signposting to support resources, and we may restrict content that encourages or instructs self-harm. Nothing in this section creates an obligation on CODAFRIQA to intervene in any particular case.

Content shared on Vently by other users is not professional advice. You should not rely on it as a substitute for advice from a qualified practitioner.

10. INTERACTIONS BETWEEN USERS

Vently facilitates interaction between users. You acknowledge that we do not verify the identity of every user, do not guarantee the accuracy of information users provide, and cannot guarantee that another user will behave appropriately.

Once you disclose information to another user, we cannot control what that person does with it. Other users may screenshot, copy or record communications where technically possible. You interact with other users at your own discretion and risk. We do not become party to a dispute between users merely because the platform facilitated the interaction. Nothing in this section limits obligations that cannot lawfully be excluded.

11. PROHIBITED USES

You may not reverse engineer the service except where the law permits, circumvent security controls, scrape the service or harvest user information without authorisation, create accounts by automated means, sell or transfer accounts, interfere with or overload our infrastructure, introduce malicious software, probe for vulnerabilities without authorisation, use Vently for unlawful surveillance, evade bans or enforcement measures, manipulate moderation systems, impersonate Vently personnel, conduct fraud or facilitate illegal transactions, or assist another person to breach these Terms.

12. MODERATION

We may, but are not obliged to, review, moderate, restrict, remove or disable User Content. Depending on the circumstances we may remove content, limit its distribution, restrict functionality, issue warnings, suspend or terminate accounts, prevent the creation of new accounts, preserve relevant information, investigate suspected abuse and cooperate with competent authorities.

We do not guarantee that all prohibited content will be identified or removed. The availability of moderation tools does not create an obligation to monitor every communication or item of User Content.

13. REPORTING

You may report content, accounts or conduct through the reporting tools provided. Submitting a report does not guarantee a particular outcome. We assess reports against our policies, applicable law, the available evidence and the safety considerations involved. Reports that are false, malicious or deliberately abusive may themselves breach these Terms.

14. SUSPENSION AND TERMINATION

We may suspend or terminate an account where reasonably necessary to enforce these Terms, protect users, prevent fraud or abuse, investigate a security incident, comply with a legal obligation, respond to a lawful request, protect our rights or property, address serious or repeated violations, or protect the integrity of the service.

Where reasonably practicable and legally permitted, we will give notice or an opportunity to remedy a violation. Immediate action may be taken where delay would create a safety, security, legal or operational risk. You may stop using Vently at any time.

15. EFFECT OF TERMINATION

On termination, your right to access the service may cease immediately and your User Content may no longer be publicly accessible. Some information may remain in backups for a limited period, or be retained where required or permitted by law, or for fraud prevention, security, legal claims or dispute resolution. Provisions which by their nature should survive termination continue to apply, and termination does not extinguish rights or obligations that arose beforehand.

16. INTELLECTUAL PROPERTY

Vently, including its software, interface, branding, trademarks, designs, graphics, architecture, original content and underlying technology, is owned by or licensed to CODAFRIQA and protected by applicable intellectual-property law. Except as these Terms expressly permit, you may not copy, reproduce, modify, distribute, sell, lease, sublicense, reverse engineer, commercially exploit or create derivative works from Vently or its protected components.

17. FEEDBACK

If you voluntarily provide suggestions or feedback about Vently, you grant CODAFRIQA the right to use that feedback without compensation or obligation, including for product development, testing and commercialisation. This does not transfer ownership of separate intellectual property that you independently own unless expressly agreed.

18. THIRD-PARTY SERVICES

Vently relies on third-party infrastructure and services, including hosting, authentication, messaging, analytics and security providers. Those providers operate under their own terms and privacy policies. We are not responsible for the independent acts or omissions of third parties outside our reasonable control. The providers we use are identified in the Privacy Policy.

19. AVAILABILITY OF THE SERVICE

Vently is provided on an evolving basis. We do not guarantee that the service will always be available or uninterrupted, that every feature will remain available, that it will be compatible with every device, that defects will be corrected immediately, that content will never be lost, that messages or notifications will always be delivered, or that the service will be entirely free from security vulnerabilities. Maintenance, updates, technical failures, cyber incidents, third-party failures and circumstances outside our reasonable control may affect availability.

20. CHANGES TO VENTTLY

We may modify, add, remove, suspend or discontinue features. Where a change materially affects your rights or obligations, we will give notice where reasonably practicable.

21. PRIVACY

Your use of Vently is also governed by the Vently Privacy Policy, which forms part of this agreement. The Privacy Policy explains what information we collect, why, the lawful bases we rely on, how information is used and shared, international transfers, storage, retention, security, your rights, cookies and similar technologies, automated processing, and how to contact us — as required by the DPP Law.

22. SECURITY

We implement reasonable technical and organisational measures designed to protect personal data and the service. No internet-based service can guarantee absolute security. You acknowledge that internet transmission carries risk, that your own device may be compromised independently of Vently, that you are responsible for protecting your credentials and device, and that incidents may occur despite reasonable safeguards. We handle personal-data incidents in accordance with the DPP Law, including its breach-notification requirements.

23. DISCLAIMER

To the maximum extent permitted by applicable law, Vently is provided “as is” and “as available”. We make no representation or warranty that the service will meet every user’s requirements, be uninterrupted or error-free, be completely secure, remain permanently available, produce any particular outcome, or be free from all harmful content submitted by users. Nothing in these Terms excludes a statutory right or liability that cannot lawfully be excluded.

24. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, CODAFRIQA LTD and its directors, officers, employees, contractors, affiliates and service providers are not liable for indirect, consequential or incidental loss; loss of profits,

business, opportunity, reputation or anticipated savings; loss of data where the law permits such exclusion; loss arising from interactions between users or from content submitted by users; the unauthorised conduct of other users; temporary unavailability of Vently; third-party services; or events outside our reasonable control.

Where liability cannot lawfully be excluded, our liability is limited to the maximum extent permitted by applicable law. If paid services are introduced, the monetary limitation of liability will be set out in the terms applicable to those services.

25. INDEMNITY

To the maximum extent permitted by applicable law, you agree to indemnify CODAFRIQA LTD, its affiliates, directors, officers, employees, contractors and service providers against claims, losses, liabilities, damages, costs and reasonable expenses arising from your breach of these Terms, your unlawful use of Vently, your User Content, your infringement of another person's rights, your fraud or intentional misconduct, your breach of applicable law, or your misuse of another user's personal information. This clause does not require you to indemnify CODAFRIQA for its own liability to the extent that such indemnity would be unlawful or unenforceable.

26. COMPLAINTS AND DISPUTE RESOLUTION

If you have a dispute with us, please contact us first and allow a reasonable opportunity to investigate and resolve the matter. Complaints may be sent to:

CODAFRIQA LTD, Akintwari, Kibagabaga, Kimironko Sector, Gasabo District, Kigali City, Rwanda Email: [LEGAL EMAIL]

Nothing in this clause prevents you from exercising a right available under mandatory law or from approaching a competent regulatory authority. Disputes that cannot be resolved informally are subject to the jurisdiction of the competent courts of the Republic of Rwanda, subject to any mandatory jurisdictional rights available to you.

27. GOVERNING LAW

These Terms are governed by and interpreted in accordance with the laws of the Republic of Rwanda, except where mandatory provisions of another applicable law require otherwise.

28. CHANGES TO THESE TERMS

We may update these Terms from time to time. Where changes are material, we will give notice through the application, by email, by in-app notice, on our website or by another reasonable method. The updated Terms will state their effective date. Continued use of Vently after the updated Terms take effect constitutes acceptance, where applicable law permits.

29. GENERAL

29.1 Severability

If any provision of these Terms is found to be invalid or unenforceable, it will be interpreted or modified to the minimum extent necessary to make it enforceable, and the remaining provisions continue in effect.

29.2 No waiver

A failure to enforce a provision of these Terms is not a waiver of the right to enforce it later.

29.3 Entire agreement

These Terms, together with the Privacy Policy and any other policy expressly incorporated into them, constitute the agreement between you and CODAFRIQA concerning your use of Vently.

30. CONTACT

CODAFRIQA LTD — operator of Vently Akintwari, Kibagabaga, Kimironko Sector, Gasabo District, Kigali City, Republic of Rwanda
Legal: [LEGAL EMAIL] | Privacy: [PRIVACY EMAIL] | Support: [SUPPORT EMAIL]